

SUPERIOR COURT, {judicialDistrictOrGaLocation}

STATE OF CONNECTICUT,

v.

JAMIE Q. SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR PHYSICAL DESTRUCTION OF RECORDS OF A DECRIMINALIZED OFFENSE
PURSUANT TO C.G.S. § 54-142d

STATUTORY AUTHORITY

C.G.S. § 54-142d — Where a person was convicted of an offense that has since been decriminalized, the person may petition the Superior Court and the court shall direct the records to be physically destroyed.
State v. Menditto, 315 Conn. (2015) — Recorded on the track as authority. The current scope of "decriminalized" after Menditto is unresolved and the case was not read in full.
State v. Dudley — Recorded on the track as authority. Held that § 54-142d did not compel erasure of a violation of probation finding premised on a later-decriminalized offense. Not read in full; no reporter citation is recorded on the track.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Superior Court, or the Judicial Department records center for older courts, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in The Superior Court at the location where the conviction was effected, at the location having custody of the records, or with the Judicial Department records center for older courts..

II. PARTIES

3. Petitioner is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE TOWN, CT 00000.
4. Petitioner has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. Petitioner was charged with [CHARGE DESCRIPTION TO BE CONFIRMED] by [ARRESTING AGENCY TO BE CONFIRMED]. [ARREST DATE TO BE CONFIRMED]
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. The matter was resolved with the following disposition: [DISPOSITION TO BE CONFIRMED]. [DISPOSITION DATE TO BE CONFIRMED]
8. Charge statutory reference: Section [PARTICIPANT ANSWER — copied from their own record].

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for destruction on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the destruction of all police and court records and records of the state's or prosecuting attorney pertaining to such case in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to physically destroy all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE TOWN, CT 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

ATTACHMENTS

Attachments submitted with this petition:

- Judicial Branch case look-up printout (participant obtains; LegalEase does not inspect it)

Prepared by petitioner using LegalEase RCAP. This is not an official court form.